

within five-day period of the Court's nomination, "jointly select the arbitrator whether or not the arbitrator is among the nominees." (Ibid.)

Plaintiff's request to "hold the arbitration [with JAMS] in abeyance while the parties complete a fair selection process or seek appointment under section 1281.6" is rejected. The Court, granting such an order, would be injecting additional terms into the parties' arbitration agreement which the parties have not agreed to. Further, once a matter has been submitted to arbitration, the Court's jurisdiction is limited "to determine any subsequent petition involving the same agreement to arbitrate and the same controversy." (Code Civ. Proc., § 1292.6.) The California Arbitration Act does vest the trial court "with the power ... entertain a petition by the plaintiff for judicial assistance in moving the arbitration forward where the matter is foundering for reasons beyond the plaintiff's control." (*Preston v. Kaiser Found. Hospitals* (1981) 126 Cal.App.3d 402, 407.) Here, however, the circumstances necessitating a hold on the arbitration process with JAMS were not created by anything beyond Plaintiff's control. Rather, Plaintiff unilaterally initiated arbitration with JAMS while bypassing a mutual discussion with Defendant.

The hearing on the Motion to Select a Neutral Arbitrator is CONTINUED to 10.07.26.

The parties are ordered to meet and confer and, at least 10 days before the continued hearing date, construct and file with the Court a joint list of proposed arbitrators from which the Court will make its nomination.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508625	REED VS BOYS AND GIRLS CLUB OF COACHELLA VALLEY INC.	HEARING RE: MOTION TO COMPEL BY BOYS AND GIRLS CLUB OF COACHELLA VALLEY INC.

Tentative Ruling: A motion to compel further interrogatory responses must include a meet-and-confer declaration under Code of Civil Procedure section 2016.040. (CCP §2030.300(b)(1).) As effective 1/1/26, section 2016.040 requires a meet-and-confer declaration to "state facts showing a reasonable and good faith attempt, either *in person*, *by telephone*, or *by videoconference*" to resolve disputes. A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates do not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) The parties must present the merits of the respective positions, and "[o]nly after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a 'sincere' effort to resolve the matter." (*Id.* at 1293 [internal quotation marks omitted].) Here, Defendant concedes that no in-person, telephone, or videoconference occurred before it filed the motion. (Overstreet Reply Decl., ¶¶ 3-4.) Defendant relies on *Clement v. Alegre*, supra, 177 Cal.App.4th 1277 to argue that a live conference is not always necessary. However, *Clement* predates the current statutory language expressly requiring an in-person, telephone, or videoconference.

The record also does not establish futility. After Plaintiff served verified supplemental responses and produced additional documents, Defendant did not request an oral or video conference after reviewing those responses. (Goldstein Decl., ¶¶ 7-9.) Since defense counsel merely sent correspondence and made no attempt to call or discuss the issues substantively, the court is ordering a proper meet and confer.

Motion to Compel is continued to 10.07.26.

Parties ordered to meet and confer **in person, by telephone or videoconferencing** in accordance with CCP § 2016.040(a). A joint declaration shall be filed at least 10 days prior to the next hearing date addressing the meet and confer. No further briefing shall be permitted.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508832	COYNE VS GENERAL MOTORS, LLC	HEARING RE: MOTION FOR ATTORNEYS FEES BY NATALIE ZISKIND COYNE

Tentative Ruling: Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

At issue in this motion is the reasonableness of Plaintiff’s request. The matter of reasonableness of a party’s attorney’s fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party’s attorney’s fees. These include “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed. [Citation omitted.]” (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney’s fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney’s fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

First, the hourly rate of \$625 is high for Riverside County. A more reasonable rate is \$550.